

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 08/18/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Alexandra Seifert v. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Defendant Paul Leon Michaelides' Motion to Compel Further Discovery and Sanctions

Tentative Ruling:

To grant defendant Paul Leon Michaelides' motion to compel further responses from plaintiff Alexandra Seifert to Special Interrogatories, Set One, Form Interrogatories, Set One, and Request for Production of Documents, Set One. Plaintiff shall provide further verified responses, without objection, to defendant within 30 days of service of the order by the clerk.

To impose monetary sanctions in the total amount of \$3,340 against plaintiff Alexandra Seifert, in favor of defendant Paul Leon Michaelides to be paid within thirty (30) days of service of the order by the clerk.

Explanation:

Defendant, Paul Leon Michaelides ("Michaelides") files these motions to compel further responses from plaintiff Alexandra Seifert. ("Seifert" or "plaintiff.") Michaelides seeks to compel further responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and to Requests for Production, Set One.

Seifert initially filed her complaint against Michaelides and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants") arising from a visit to Dr. Michaelides' dental office on August 15, 2022 when COVID-19 restrictions were in place including a mask mandate for healthcare settings, where Seifert eventually left the premises, and not necessarily through her own volition. ("Incident.")

Standard to Compel Further Responses to Interrogatories and Requests for Production

A party may move for an order compelling further responses to interrogatories on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The Code of Civil Procedure instructs the responding party that: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the

responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220)

"Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) "If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." (*Id.* at p. 782.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

With respect to the production of documents, a party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The burden is on the moving party to "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

The Discovery Requests and Responses

On December 10, 2025, Michaelides served form and special interrogatories, and demands for production of documents, set one, on Seifert. (Gibson Decl., ¶14.) Seifert served responses on January 13, 2026, which contained no substantive responses and only objections. Seifert electronically provided further responses on March 4, 2026 and on March 5, 2026, which merely asserted additional objections.

Michaelides filed these three motions on April 20, 2026.

Seifert's Limited Opposition Is Unfounded

Seifert argues that the motions are untimely because the "responses" (actually objections) were merely "amended" responses and not "supplemental responses." This perceived distinction makes no difference.

It is irrelevant how Seifert chose to label her responses. The Court evaluates parties' filings on their substance, not on the labels the parties choose to attach to them nor the statutory provisions they elect to cite. (Civ. Code, § 3528 ["The law respects form less than substance"]; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193

[motions]; *O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal.App.5th 546, 560 [same]; *Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908 [allegations in pleadings]; *Maplebear, Inc. v. Busick* (2018) 26 Cal.App.5th 394, 400 [orders]; *Taska v. RealReal, Inc.* (2022) 85 Cal.App.5th 1, 11 [arbitrators' decisions].)

Seifert argues, without legal support, that “[s]upplemental responses arise only after the propounding party serves a supplemental demand seeking later-acquired or later-discovered information. A responding party has no obligation to provide supplemental information absent such a demand. In contrast, amended responses are made voluntarily by the responding party, without any demand.” (Seifert’s Opposition, pg. 5:6-9, italics and underlined not added.)

The statutory scheme for interrogatories are separated into three articles: Article 1 with respect to “Propounding Interrogatories” which encompasses Code of Civil Procedure section 2030.010 through 2030.090; Article 2 with respect to “Response to Interrogatories” which encompasses Code of Civil Procedure section 2030.210 through 2030.310; and Article 3 with respect to “Use of Interrogatory Answer” which references Code of Civil Procedure section 2030.410.

Here, the relevant statutes are found in Article 2, which pertains to Seifert’s response to interrogatories. The Code of Civil Procedure does not define either “amended” or “supplemental.” “‘As in any case involving statutory interpretation, our fundamental task here is to determine the Legislature’s intent so as to effectuate the law’s purpose.’ [Citation.] The well-established rules for performing this task require us to begin by examining the statutory language, giving it a plain and commonsense meaning. [Citation.] We do not, however, consider the statutory language in isolation; rather, we look to the statute’s entire substance in order to determine its scope and purposes. [Citation.] That is, we construe the words in question in context, keeping in mind the statute’s nature and obvious purposes. [Citation.] We must harmonize the statute’s various parts by considering it in the context of the statutory framework as a whole. [Citation.] If the statutory language is unambiguous, then its plain meaning controls. If, however, the language supports more than one reasonable construction, then we may look to extrinsic aids, including the ostensible objects to be achieved and the legislative history.” (*Los Angeles County Metropolitan Transportation Authority v. Alameda Produce Market, LLC* (2011) 52 Cal.4th 1100, 1106–1107.)

Seifert argues that her subsequent responses are “amended answers” per Code of Civil Procedure section 2030.310, subdivision (a). Code of Civil Procedure section 2030.310, subdivision (a) provides that “[w]ithout leave of court, a party may serve an amended answer to any interrogatory that contains information subsequently discovered, inadvertently omitted, or mistakenly stated in the initial interrogatory”. Here, an amended answer requires “information subsequently discovered, inadvertently omitted, or mistakenly stated.”

Unlike Code of Civil Procedure section 2030.310, subdivision (a) which describes what an “amended answer” is and the circumstances where they are proper, Code of Civil Procedure section 2030.300, subdivision (c) authorizes a motion to compel further responses after a “supplemental response,” but does not define what a “supplemental” response is. Code of Civil Procedure section 2030.300, subdivision (c), provides “[u]nless

notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories."

"Supplemental" means "supplying something additional; adding what is lacking." ("Supplemental," Black's Law Dictionary (12th ed. 2024). This is consistent with the everyday use of supplemental, where "supplement" means "something that completes or makes an addition." (*Supplement*, Merriam-Webster Online Dictionary, <https://www.merriam-webster.com/Dictionary/supplement> (August 15, 2026).) It should be noted that neither Black's Law dictionary definition nor Merriam-Webster's dictionary bare any resemblance to Seifert's own definition of "supplemental," as stated above.

Here, Seifert's subsequent responses with respect to the form and special interrogatories were "supplemental responses" as opposed to "amended answers." In truth, they were non-answers as Seifert only supplied objections. Seifert's subsequent answers do not contain any "information subsequently discovered, inadvertently omitted, or mistakenly stated." Seifert merely added additional objections.

Motions to Compel Further were Timely

A notice of motion to compel further responses must be given within 45 days of the service of the verified responses, or any supplemental verified responses, or on or before any specific later date to which the parties have agreed in writing. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Here, Seifert electronically provided further responses to Michaelides' Form Interrogatories, Special Interrogatories, and Requests for Production on March 4, 2026 and on March 5, 2026. 45 days from March 4, 2026 fell on April 18, 2026, which was a Saturday. Code of Civil Procedure section 12a, subdivision (a) states that "[i]f the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday." Accordingly, the last day for Michaelides to serve Seifert would be the next Court date, which would be April 20, 2026, extended by two days pursuant to Code of Civil Procedure section 1010.6 (a)(3)(B),

Accordingly, Michaelides' motion is timely.

Seifert Failed to Justify Her Objections to Defendant's Discovery

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., §2031.310(b)(1).) In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined "good cause" as a showing that there "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98.)

With respect to interrogatories, “[w]hile the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives are unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Here, Michaelides has met his initial burden showing good cause for the discovery sought, and how the answers it has received from Seifert are unsatisfactory. Seifert's opposition only addressed the issue of whether she served supplemental or amended responses (Seifert's Opposition, pp. 3:18-9:19), which this Court has already addressed above. Seifert has failed to meet her burden in justifying her objections. Accordingly, Michaelides' motions to compel further are granted.

Sanctions

Michaelides seeks a total of \$9,605 in sanctions against Seifert with respect to these motions. Seifert did not contest the imposition of monetary sanctions in her opposition papers.

The court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

The motions are essentially identical. The Court therefore grants sanctions in the amount of \$3,340.00 for all three motions as the Court finds the requested \$250 hourly rate reasonable, and agrees that Defendant is to be reimbursed for the three filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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